

Name changed to: DOW CHEMICAL INTERNATIONAL
PRIVATE LIMITED
W.e.f. 01-11-1999

V. Shome

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THE COMPANIES ACT, 1956

COMPANY LIMITED BY SHARES

MEMORANDUM OF ASSOCIATION

OF

DOW (INDIA) SYSTEMS PRIVATE LIMITED

13/02/98

REG. NO. 11-021103R
M.O.A. 06/02/98
N 5500
A 0
T*****5500
DRAFT 117313
06/02/98
WAKODIKAR
DDT. 13/02/98

REG. NO. 11-021103R
M.O.A. 06/02/98
N 5500
A 0
T*****5500
DRAFT 117313
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REG. NO. 11-021103R
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DRAFT 117313
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WAKODIKAR
DDT. 13/02/98

- I. The name of the Company is Dow (India) Systems Private Limited.
- II. The Registered office of the Company will be situated in the State of Maharashtra.

The objects for which the Company is established are :

(A) MAIN OBJECTS OF THE COMPANY TO BE PURSUED BY THE COMPANY ON ITS INCORPORATION ARE :

1. To carry on, ~~directly or indirectly~~, the business as manufacturers of, processors, dealers, stockists, distributors, consultants, collaborators, supplier, chemical engineers, analytical chemists, importers, and exporters of chemicals (solid, liquid and gaseous), chemical compounds (organic and inorganic) in all forms, and chemical products of any nature and kind whatsoever, and all by-products and joint products thereof including heavy chemicals, acids, alkalies, petro-chemicals, drugs, medicines, pharmaceuticals, antibiotics, tannins, extracts, essences, solvents, plastics of all types, dyestuffs, intermediates, textile auxiliaries, cellophanes, colours, dyes, paints, varnishes, vat and other organic dyestuffs, chemical auxiliaries, disinfectants, insecticides, fungicides, deodorants, biochemicals and pharmaceutical, medicinal, sizing, bleaching, photographic and other preparations and articles, polyurethane raw materials, polyol component of the PU Systems (including the manufacturing of isocyanate prepolymers) and intermediates for polyurethanes, isocyanates and polyols, and develop polyether PU materials and to formulate polyurethane foams and to deal in its products including setting up of a polyurethane systems house and to sell polyurethane machineries and spare parts and to carry research and development activities for the aforesaid purposes.

Stamp of Commissioner, Mumbai.



GENERAL STAMP OFFICE
TOWN HALL, FORT,
MUMBAI - 400 023.
MAH/GSO/004

STAMP DUTY
0000100
-6.2.98

SPECIAL ADHESIVE
1106989/01:

(B) *OBJECTS INCIDENTAL OR ANCILLARY TO THE ATTAINMENT OF .*

2. To buy all kinds of plant, equipment, machinery, apparatus, tools, utensils, commodities, substances, articles and things necessary or useful for carrying on any of the above businesses or usually dealt with by persons engaged therein.
3. To enter into contracts and agreements with any company or persons for obtaining by grant of license or on such other terms of all types formulae and such other rights and benefits, technical information, know-how and expert guidance and equipment and machinery for the production and manufacture in India of the articles and things mentioned herein.
4. To enter into an agreement, contract for, undertake or otherwise arrange for receiving mailing or forwarding any circulars, notices, reports, brochures, materials, articles and things belonging to any company, corporation, firm, institution or person or persons, by means of delivery by hand or otherwise.
5. To receive money in any form, borrow or raise money on such terms and conditions as the Company may consider expedient and secure and discharge any debt or obligation or binding, on the Company, in such manner as may be thought fit and, in particular, by mortgages of the whole or any part of its undertaking and all or any of the immovable and movable property (present or future) and the uncalled capital of the Company, or by the creation and issue, on such terms as may be thought expedient, of shares, bonds, debentures or debenture-stock, perpetual or otherwise, or other securities of any description.
6. To employ experts, with or without payment, to investigate into and examine the conditions, prospects, value, character and circumstances of any business, concern, undertaking, person or persons and generally of any assets, property or rights.
7. To employ, engage, retain or otherwise procure the services of experts in the Company.
8. To recruit, train and develop staff, organise seminars, training programmes and conferences for employees and clients.
9. To purchase, take on lease or licence or in exchange, hire or otherwise acquire any immovable or movable property, licences, rights or privileges which the Company may think necessary or convenient for any business of the Company and to develop and turn to account and deal with the same and, in particular, with any land, tenements, buildings and easements in such manner as may be thought expedient and to construct, maintain and alter any immovable or movable property or works necessary or convenient for the purpose of the Company, and to pay for the same either in cash or in shares or securities or otherwise and to sell, let, lease or sub-let, under-let, under lease or otherwise dispose of or deal

with or grant right over any movable or immovable property belonging to the Company.

- 12 To publish books, journals, magazines, reports or otherwise disseminate information for the business of the Company.
- 17 To enter into any arrangement with the Government of India or any other Government or authority, Central, State, Municipal or otherwise, for the purpose of carrying out the objects of the Company or furthering its interest and to obtain from any such Government or authority all rights, concessions, privileges, loans, indemnities, contracts, powers or immunities which the Company may think desirable to obtain and to carry out, and to exercise and comply with any such arrangements, rights, privileges and concessions.
- 12 To apply for, promote and obtain any order, directive, instructions, regulations, ordinance or other authorisation or enactment of the Central or any State Government or any other authority for enabling the Company to put any of its objects to effect, or for effecting any modification or change in any of the Company's business or constitution and to oppose any proceedings or applications which may seem to prejudice the Company's business or interests.
- 13 To borrow or raise or secure the payment of money in such manner as the Company shall think fit and, in particular, by the issue of debenture, stock, perpetual or otherwise, charged upon all or any of the Company's property (both present and future) including its uncalled capital and to purchase, redeem and pay-off any such securities.
- 14 To buy, underwrite, invest, acquire, hold and deal in shares, stocks, debentures-stock, bonds, obligations and securities of any kind issued or guaranteed by any company constituted or carrying on business in India or elsewhere and debentures, debenture-stocks, bonds, obligations and securities issued or guaranteed by any Government Central or State, dominions, sovereign rulers, Commissioners, public body or authority, supreme, municipal, local or otherwise firm or person whether in India or elsewhere and from time to time sell or vary such investments; and to execute all assignments, transfers, receipts and documents that may be necessary in that behalf.
- 16 To open current or other accounts with any banks, to pay money into and draw money from such accounts.
- 17 To maintain safe deposit lockers with any banks or companies for the safe custody of any of the Company's assets.
- 18 To acquire by purchase, lease or otherwise any premises for the construction and/or establishment of a safe deposit vault or vaults, and to maintain therein fire proof and burglar proof strong rooms, safes and other receptacles for deeds, securities, documents, money, jewellery and valuables of all kinds.

- 18 To acquire, purchase, take-over and/or amalgamate business of companies which, under existing circumstances, from time to time, may conveniently or advantageously, be combined with the business of the Company, and to amalgamate or merge with companies whose business are so acquired, purchased or taken over and/or to enter into agreements with the object of acquisition of such undertaking and/or business.
- 20 To procure recognition of the Company under the concerned/relevant laws or regulations of any other country.
- 21 To enter into any arrangements with any Government or Government departments or authorities that may seem conducive to the attainment of the Company's main objects, and to obtain from any such Government or Government departments or authorities any rights, privileges, licences and concessions necessary or desirable to obtain and to carry out, exercise, use or comply with any such arrangements, rights, privileges or concessions.
- 22 To form, promote, subsidise, organise and assist or aid in forming, promoting, subsidising, organising or aiding, companies or partnerships of all kinds for the purpose of accepting and undertaking any properties, assets, and/or liabilities of this Company.
- 23 To guarantee the payment of money secured or unsecured, payable in respect of promissory notes, bonds, debentures, debenture stock, contracts, mortgages, charges, obligations, instruments and securities of any company or any Government authority, Central, State, Municipal or otherwise or of any person whomsoever, whether incorporated or not incorporated, and to generally guarantee or become sureties for the performance of any contracts or obligations.
- 24 To place, reserve or to distribute as bonus, shares amongst the members or others and to apply, as the Company may from time to time think fit, any monies received by way of premium on shares or debentures issued at premium by the Company, any monies received in respect of forfeited shares, monies arising from the sale by the Company of forfeited shares, from accumulated or current profits or from any other reserves.
- 25 To provide for and furnish or secure to any members or customers of the Company, any publications of the Company or any coupons or tickets, issued with any publications of the Company any conveniences, advantages, benefits or special privileges which may seem expedient or necessary either gratuitously or otherwise.
- 26 To sell, improve, manage, develop, exchange, lease, mortgage, dispose of, or transfer business, property and undertakings of the Company, or any part thereof without or with any consideration which the Company may deem fit to accept.

26. To acquire, construct, maintain and alter any buildings or works necessary or convenient for the purpose of the Company.
27. To provide for the welfare of the employees, ex-employees, Directors or ex-Directors of the Company and wives, widows and families or the dependants of such persons by grant of money, pension, allowances, bonus or other payments by creating and from time to time subscribing or contributing to provident funds and other associations, institutions, trusts, and by providing or subscribing towards medical or other attendances and other assistance as the Company may think fit, and to subscribe to, contribute to, or otherwise assist charitable, benevolent, national and/or other institutions or objects.
28. To create any Reserve Fund/Account, Sinking Fund, Insurance Fund/Account or any other Special Fund/Account whether for repairing, improving, extending, or maintaining any of the property of the Company or for any other purpose conducive to the interest of the Company, and to vary or transpose the same.
29. To pay all costs, charges and expenses incurred or sustained in or related to the promotion, incorporation and establishment of the Company or which the Company shall consider to be preliminary including expenses for issue of capital, out of the funds of the Company.
30. To refer to or agree to refer any claims, demands, dispute or any other question by or against the Company or in which the Company is interested or concerned, and whether between the Company and the member or members of the Company and/or his representatives, or between the Company and third parties, to arbitration and to observe and perform and do all acts, matters and things to carry out or enforce the awards.
31. To acquire, hold, sell, transfer or dispose off one or more memberships in stock/security exchanges, trade associations, commodity exchanges, clearing houses or associations in India or any part of the world, and to secure membership privileges therefrom and to acquire and hold membership in any association of bankers, insurance companies, brokers, security dealers, or commodity dealers or any other association, which will or is likely in any way to facilitate the conduct of the Company's business.
32. To carry on the business in any of the objects specified above, whether within or outside India and whether by itself or through an agent/representative or by forming any subsidiary wholly owned by itself or along with other/others in India or anywhere in the world.
33. To enter into joint ventures, partnerships or any arrangements for joint working in business or for sharing profits or to amalgamate with any person, firm or company carrying on similar business in India or abroad.

35. To develop procedures, methods and principles for and to carry on research and developmental activities on all aspects related to the business and objects of the Company.
36. To form, promote, subsidise, organise, assist, maintain and conduct or aid in forming, promoting, subsidising, organising, assisting, maintaining, and conducting experimental workshops, tests, research studies and experiments on scientific, technical, economic, commercial or any other subject matters, and to undertake all types of technical, economic, and financial investigations and to aid or assist or enter into partnership with any institution, university, company, partnership firm or person or persons undertaking or conducting such research, study, and to provide, subsidise, endow and assist workshops, libraries, meetings, lectures, and conferences by providing for the remuneration of professors or teachers or research scholars on any subject and by providing for awards, exhibitions, scholarships, prizes and generally to encourage, promote and reward studies, researches, investigations, experiments, tests and inventions of any kind that may be considered to assist any of the businesses of the Company.
37. To identify projects and project ideas, and to prepare project profiles, project reports, and reports, and to conduct market research, feasibility studies, preinvestment studies and investigation of industries on micro and macro levels, and to undertake studies and surveys to identify the scope or potential for economic and industrial development, in any particular geographical area or location whether in India or abroad.
38. To subscribe to or otherwise aid benevolent, charitable, national or other institutions or objects of a public character which have any moral or other claims to be supported or aided by the Company by reason of the locality of its operations or otherwise.
39. To provide/grant aid, pecuniary or otherwise, to any association, body or movement having for an object the solution, settlement or avoidance of industrial or labour problems or troubles or the promotion of industry or trade.
40. To enter into arrangements for rendering services in collaboration with individuals, firms, body corporates whether in or outside India.
41. To undertake and execute any trust or direct any such undertaking and to distribute amongst the beneficiaries, pensioners or other persons entitled thereto, any income, capital or annuity, whether periodically or otherwise, and whether in specie or kind, in furtherance of any trust, direction or other obligation or permission.
42. To lend and advance money or give credit to any person or company and to guarantee and give guarantees or indemnities for the payment of money or the performance of contracts or obligations by any person or company, and to secure or undertake in any manner the repayment of

money lent or advanced to, or the liabilities incurred by any person or company and to assist any person or company.

43. To mortgage or charge all or any part of the property and rights of the Company including its uncalled capital.

44. To remunerate any person or company for services rendered, or to be rendered in placing or assist in placing or guarantee the placing, whether in or outside India, of any of the shares of the Company or any debentures or other securities of the Company.

45. To carry on any business or branch of business which the Company is authorised to carry on by means of or through the agency of, any company or companies, and to organise, promote and incorporate such company or companies, and to enter into any arrangement with such company for taking the profits and bearing the losses of any business or branch of business so carried on, or for the financing of any such company or guaranteeing its liabilities, or to make any other arrangements which may seem desirable with reference to any business or branch of business so carried on or for the financing of any such company or guaranteeing its liabilities, or to make any other arrangements which may seem desirable with reference to any business or branch of business so carried on.

46. To nominate Directors or Managers of any subsidiary company of the Company or of any other company in which the Company is or may be interested.

47. To amalgamate, enter into partnership or into any arrangement for sharing profits or losses, union of interests, co-operation, joint venture or reciprocal concession with any person or company carrying on or engaged in, or about to carry on or engage in, any business or transaction which the Company is authorised to carry on or engage in or which can be carried on in conjunction therewith; and to accept by way of consideration for any of the acts or things aforesaid, any property, including shares, debentures, debenture-stock or securities, that may be agreed upon, and to hold and retain, or sell mortgage and deal with any property including shares, debentures, debenture-stock or securities so received.

48. To make donations to such persons or institutions and in such cases, either in kind or by cash or by any other assets, which may be thought directly or indirectly conducive to any of the Company's objects or business, and to remunerate any person or corporation introducing business to the Company.

49. To carry on any trade or business related to the business of the Company which in the opinion of the Board of Directors, may be advantageously or conveniently carried on by the Company by way of extension of or in connection with or as ancillary to any such business as aforesaid, or is

calculated directly or indirectly to develop any branch of the Company's business.

~~41~~ To develop, extend or expand any branch of the Company's main and ancillary business.

50 To distribute any of the Company's property among the members subject to the provisions of the Companies Act, in the event of winding up.

(C) OTHER OBJECTS:

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51 To undertake and carry on the office or offices and duties of trustee, custodian trustee, executor, administrator, liquidator, receiver, attorney or nominee of, or for, any person, company, corporation, association, scheme, trust fund, government, central, state or municipal, or other body politic or corporate.

52 To finance or assist, by advancing loans or in any manner, and to render services in, acquisition, purchase, sale or disposal of or dealing in or dealing with land, estate, building sites, buildings, plant, machinery, equipment and any other type of properties or right or interest therein as also in developing, constructing and managing and maintaining the same and also to guarantee the debts, obligations and contracts of any person, firm or company, or corporations whatsoever either with or without interest and/or with or without any security and to purchase any property, or to take demise for any term or terms of years of any land or property upon such terms and conditions as the Company may think fit.

53 To carry on all or any of the business as assessors, designers, draftsmen, estimators, surveyors or valuers.

54 To carry on the business of producers, manufacturers, buyers, sellers, distributors, exporters and importers of furniture, machinery, equipments and any other materials or commodities.

55 To engage in exploration of oil and gas onshore and offshore, in India and elsewhere, and to tap oil and gas reserves and other similar or allied substances.

56 To carry on the business as carriers of passengers, livestock, other animals, goods and instruments and as shipping, chartering, forwarding and transport agents, stevedores, wharfingers, dry dock operators, aircraft and spacecraft operators, carmen, carting contractors and agents, cargo superintendents, packers and haulers, warehousemen and proprietors, garage proprietors, engineers and electricians, travel agents, tourist bureau and booking agents hoteliers and customs clearing agents.

57 To carry on the business of a transport company, ship builders, engineers, manufacturers of machinery and railway wagon and coach builders.

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58. To organise production, processing and marketing of oil, gas and other similar or allied substances in India and elsewhere.
59. To commence and carry on the business of assisting, financially or in any other manner, any industrial, commercial, professional and/or trading enterprises including corporate bodies, partnership firms, trusts, association of persons and societies, individuals or other concerns by assisting directly, indirectly or in any other manner in the creation, expansion and modernisation of such enterprises, and by encouraging and promoting private and public ownership and participation of capital and management in such enterprises.
60. To commence and carry on the business of providing advice, consultancy or services in various fields, inter alia, including management, investment, technology, administration, commerce, law, economics, labour, industry, public relations, statistics, science, computers, accountancy, taxation, quality control and processing and the service sector industry.
61. To provide information and guidance on governmental policies and regulations and to assist in obtaining various consents, approvals, from Government or other authorities or agencies which may be required for establishing an undertaking or in its diversification or expansion and to advise the Government on incentive schemes to attract industries and for setting up of industrial estates.
62. To carry on the business of financing, leasing, letting on hire, hire purchase or easy payment system, machinery, equipment or property of any kind.
63. To commence and carry on the business of providing advice, consultancy or services in various fields, inter alia, including management, investment, technology, administration, commerce, law, economics, labour, industry, public relations, statistics, science, computers, accountancy, taxation, quality control and processing and the service sector industry.

IV The liability of the members is limited.

V The Authorised Share Capital of the Company is Rs. 5,00,000 (Rupees Five Lacs only) divided into 50,000 (Fifty Thousand) Equity Shares of Rs 10 (Rupees Ten only) each with the rights, privileges and conditions attached thereto as per the relevant provisions contained in that behalf in the Articles of Association of the Company and with the power to increase or reduce the capital of the Company and divide the shares in the capital into several classes (being those specified in the Companies Act, 1956) and attach thereto respectively such preferential, qualified or special rights, privileges or conditions in such manner as may be permitted by the said Act or provided by the Articles of Association of the Company for the time being in force.

We the several persons, whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of this Memorandum of Association, and we respectively agree to take the number of shares in the capital of the Company set opposite our respective names.

Name address, description and occupation of each subscriber	Signature of each Subscriber	Number of shares taken by each subscriber	Signature, name address, description and occupation of witness
1. VIPUL SHAH S/O SHANTILAL T. SHAH ADD: 69/A, JAIBHARAT SOC. "HARSHIL" 2ND FLOOR 3RD ROAD, KHAR (W) MUMBAI - 400052 OCCUPATION: SERVICE	<i>[Signature]</i> Vipul Shah	Ten 10 equity shares of Rs 10/- each)	<i>[Signature]</i> Vijay Sureshwar Dhanu S/o Sureshwar 87/1, 1ST floor (E), Ghandhari - 22 Company Law Graduate
2. BHARAT VASANI S/O DAMODAR H. VASANI Add: B-43, FLOWER BLOOM VEERA DESAI ROAD, ANDHERI (WEST) MUMBAI - 400058 Occupation: SERVICE	<i>[Signature]</i> Bharat Vasani	Ten - 10 equity shares of Rs 10/- each)	<i>[Signature]</i> Vijay Sureshwar Dhanu S/o Sureshwar 87/1, 1ST floor (E), Ghandhari - 22 Company Law Graduate
		20 Shares	

Dated: 6/2/98 *[Signature]*

Place: MUMBAI